

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 633 By: Weaver of the Senate
3 and
4 Blair of the House
5
6

7 An Act relating to the Oklahoma Juvenile Code;
8 amending 10A O.S. 2021, Section 2-7-308, which
9 relates to management information system and access
10 to confidential records and reports; authorizing
11 certain persons access to certain confidential
12 records and reports; and providing an effective date.

13
14 AUTHOR: Remove Representative Blair as principal House author and
15 substitute with Representative Hilbert.

16
17 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
18 and insert:

19 "An Act relating to children; amending 10A O.S. 2021,
20 Sections 1-1-105, as amended by Section 1, Chapter
21 375, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-1-
22 105), and 1-2-102, as last amended by Section 2,
23 Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025, Section
24 1-2-102), which relates to the Oklahoma Children's
Code; enacting Leo's Law; modifying term; requiring
that safety analysis be conducted in certain
circumstances; providing that the Department of Human
Services shall attempt to acquire consent for drug
screening for certain individuals; directing the
Department to notify a district attorney within
certain amount of time; mandating that all drug
screenings include fentanyl testing; providing when
drug testing shall occur; directing the Department of

1 Human Services to make referral to law enforcement
2 agency in certain circumstances; directing the
3 Department to promulgate rules by certain date;
4 providing that the court may direct certain
5 individuals to pay for drug testing; providing
6 exception; creating the Child Welfare Fentanyl
7 Testing Revolving Fund; providing purpose; directing
8 the Department to provide annual report; providing
9 information report shall contain; amending 21 O.S.
10 2021, Section 852.1, as amended by Section 187,
11 Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
12 852.1), which relates to child endangerment;
13 modifying what constitutes child endangerment;
14 providing definition; providing for fines and
15 penalties; appropriating funds; providing that the
16 requirements of this act be carried out within
17 existing appropriations and designated funds;
18 providing for codification; and providing an
19 effective date.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law not to be
22 codified in the Oklahoma Statutes reads as follows:

23 This act shall be known and may be cited as "Leo's Law".

24 SECTION 2. AMENDATORY 10A O.S. 2021, Section 1-1-105, as
amended by Section 1, Chapter 375, O.S.L. 2025 (10A O.S. Supp. 2025,
Section 1-1-105), is amended to read as follows:

Section 1-1-105. When used in the Oklahoma Children's Code,
unless the context otherwise requires:

1. "Abandonment" means:

- a. the willful intent by words, actions, or omissions not
to return for a child,

- 1 b. the failure to maintain a significant parental
2 relationship with a child through visitation or
3 communication in which incidental or token visits or
4 communication are not considered significant, or
5 c. the failure to respond to notice of deprived
6 proceedings;

7 2. "Abuse" means harm or threatened harm to the health, safety,
8 or welfare of a child by a person responsible for the child's
9 health, safety, or welfare, including, but not limited to,
10 nonaccidental physical or mental injury, sexual abuse, or sexual
11 exploitation. Provided, however, that nothing contained in the
12 Oklahoma Children's Code shall prohibit any parent from using
13 ordinary force as a means of discipline including, but not limited
14 to, spanking, switching, or paddling.

- 15 a. "Harm or threatened harm to the health, safety, or
16 welfare of a child" means any real or threatened
17 physical, mental, or emotional injury or damage to the
18 body or mind that is not accidental including, but not
19 limited to, sexual abuse, sexual exploitation,
20 neglect, or dependency.
21 b. "Sexual abuse" includes but is not limited to rape,
22 incest, and lewd or indecent acts or proposals made to
23 a child, as defined by law, by a person responsible
24 for the health, safety, or welfare of the child.

1 c. "Sexual exploitation" includes but is not limited to
2 allowing, permitting, encouraging, or forcing a child
3 to engage in prostitution, as defined by law, by any
4 person eighteen (18) years of age or older or by a
5 person responsible for the health, safety, or welfare
6 of a child, or allowing, permitting, encouraging, or
7 engaging in the lewd, obscene, or pornographic, as
8 defined by law, photographing, filming, or depicting
9 of a child in those acts by a person responsible for
10 the health, safety, and welfare of the child;

11 3. "Adjudication" means a finding by the court that the
12 allegations in a petition alleging that a child is deprived are
13 supported by a preponderance of the evidence;

14 4. "Adjudicatory hearing" means a hearing by the court as
15 provided by Section 1-4-601 of this title;

16 5. "Age-appropriate or developmentally appropriate" means:

17 a. activities or items that are generally accepted as
18 suitable for children of the same age or level of
19 maturity or that are determined to be developmentally
20 appropriate for a child, based on the development of
21 cognitive, emotional, physical, and behavioral
22 capacities that are typical for an age or age group,
23 and
24

1 b. in the case of a specific child, activities or items
2 that are suitable for that child based on the
3 developmental stages attained by the child with
4 respect to the cognitive, emotional, physical, and
5 behavioral capacities of the specific child.

6 In the event that any age-related activities have implications
7 relative to the academic curriculum of a child, nothing in this
8 paragraph shall be construed to authorize an officer or employee of
9 the federal government to mandate, direct, or control a state or
10 local educational agency, or the specific instructional content,
11 academic achievement standards and assessments, curriculum, or
12 program of instruction of a school;

13 6. "Assessment" means a comprehensive review of child safety
14 and evaluation of family functioning and protective capacities that
15 is conducted in response to a child abuse or neglect referral that
16 does not allege a serious and immediate safety threat to a child;

17 7. "Behavioral health" means mental health, substance abuse, or
18 co-occurring mental health and substance abuse diagnoses, and the
19 continuum of mental health, substance abuse, or co-occurring mental
20 health and substance abuse treatment;

21 8. "Child" means any unmarried person under eighteen (18) years
22 of age;

23 9. "Child advocacy center" means a center and the
24 multidisciplinary child abuse team of which it is a member that is

1 accredited by the National Children's Alliance or that is completing
2 a sixth year of reaccreditation. Child advocacy centers shall be
3 classified, based on the child population of a district attorney's
4 district, as follows:

- 5 a. nonurban centers in districts with child populations
6 that are less than sixty thousand (60,000), and
- 7 b. mid-level nonurban centers in districts with child
8 populations equal to or greater than sixty thousand
9 (60,000), but not including Oklahoma and Tulsa
10 Counties;

11 10. "Child with a disability" means any child who has a
12 physical or mental impairment which substantially limits one or more
13 of the major life activities of the child, or who is regarded as
14 having such an impairment by a competent medical professional;

15 11. "Child-placing agency" means an agency that arranges for or
16 places a child in a foster family home, family-style living program,
17 group home, adoptive home, or a successful adulthood program;

18 12. "Children's emergency resource center" means a community-
19 based program that may provide emergency care and a safe and
20 structured homelike environment or a host home for children
21 providing food, clothing, shelter and hygiene products to each child
22 served; after-school tutoring; counseling services; life-skills
23 training; transition services; assessments; family reunification;
24 respite care; transportation to or from school, doctors'

1 appointments, visitations and other social, school, court or other
2 activities when necessary; and a stable environment for children in
3 crisis who are in custody of the Department of Human Services if
4 permitted under the Department's policies and regulations, or who
5 have been voluntarily placed by a parent or custodian during a
6 temporary crisis;

7 13. "Community-based services" or "community-based programs"
8 means services or programs which maintain community participation or
9 supervision in their planning, operation, and evaluation.

10 Community-based services and programs may include, but are not
11 limited to, emergency shelter, crisis intervention, group work, case
12 supervision, job placement, recruitment and training of volunteers,
13 consultation, medical, educational, home-based services, vocational,
14 social, preventive and psychological guidance, training, counseling,
15 early intervention and diversionary substance abuse treatment,
16 sexual abuse treatment, transitional living, independent living, and
17 other related services and programs;

18 14. "Concurrent permanency planning" means, when indicated, the
19 implementation of two plans for a child entering foster care. One
20 plan focuses on reuniting the parent and child; the other seeks to
21 find a permanent out-of-home placement for the child with both plans
22 being pursued simultaneously;

23 15. "Court-appointed special advocate" or "CASA" means a
24 responsible adult volunteer who has been trained and is supervised

1 by a court-appointed special advocate program recognized by the
2 court, and when appointed by the court, serves as an officer of the
3 court in the capacity as a guardian ad litem;

4 16. "Court-appointed special advocate program" means an
5 organized program, administered by either an independent, not-for-
6 profit corporation, a dependent project of an independent, not-for-
7 profit corporation or a unit of local government, which recruits,
8 screens, trains, assigns, supervises and supports volunteers to be
9 available for appointment by the court as guardians ad litem;

10 17. "Custodian" means an individual other than a parent, legal
11 guardian or Indian custodian, to whom legal custody of the child has
12 been awarded by the court. As used in this title, the term
13 custodian shall not mean the Department of Human Services;

14 18. "Day treatment" means a nonresidential program which
15 provides intensive services to a child who resides in the child's
16 own home, the home of a relative, a group home, a foster home, or a
17 residential child care facility. Day treatment programs include,
18 but are not limited to, educational services;

19 19. "Department" means the Department of Human Services;

20 20. "Dependency" means a child who is homeless or without
21 proper care or guardianship through no fault of his or her parent,
22 legal guardian, or custodian;

23 21. "Deprived child" means a child:
24

- a. who is for any reason destitute, homeless, or abandoned,
- b. who does not have the proper parental care or guardianship,
- c. who has been abused or neglected or is dependent,
- d. whose home is an unfit place for the child by reason of depravity on the part of the parent or legal guardian of the child, or other person responsible for the health or welfare of the child,
- e. who is a child in need of special care and treatment because of the child's physical or mental condition, and the child's parents, legal guardian, or other custodian is unable or willfully fails to provide such special care and treatment. As used in this paragraph, a child in need of special care and treatment includes, but is not limited to, a child who at birth tests positive for alcohol or a controlled dangerous substance and who, pursuant to a drug or alcohol screen of the child and an assessment of the parent, is determined to be at risk of harm or threatened harm to the health, safety, or welfare of a child,
- f. who is a child with a disability deprived of the nutrition necessary to sustain life or of the medical

1 treatment necessary to remedy or relieve a life-
2 threatening medical condition in order to cause or
3 allow the death of the child if such nutrition or
4 medical treatment is generally provided to similarly
5 situated children without a disability or children
6 with disabilities; provided that no medical treatment
7 shall be necessary if, in the reasonable medical
8 judgment of the attending physician, such treatment
9 would be futile in saving the life of the child,

10 g. who, due to improper parental care and guardianship,
11 is absent from school as specified in Section 10-106
12 of Title 70 of the Oklahoma Statutes, if the child is
13 subject to compulsory school attendance,

14 h. whose parent, legal guardian or custodian for good
15 cause desires to be relieved of custody,

16 i. who has been born to a parent whose parental rights to
17 another child have been involuntarily terminated by
18 the court and the conditions which led to the making
19 of the finding, which resulted in the termination of
20 the parental rights of the parent to the other child,
21 have not been corrected, or

22 j. whose parent, legal guardian, or custodian has
23 subjected another child to abuse or neglect or has
24 allowed another child to be subjected to abuse or

1 neglect and is currently a respondent in a deprived
2 proceeding.

3 Nothing in the Oklahoma Children's Code shall be construed to
4 mean a child is deprived for the sole reason the parent, legal
5 guardian, or person having custody or control of a child, in good
6 faith, selects and depends upon spiritual means alone through
7 prayer, in accordance with the tenets and practice of a recognized
8 church or religious denomination, for the treatment or cure of
9 disease or remedial care of such child.

10 Evidence of material, educational or cultural disadvantage as
11 compared to other children shall not be sufficient to prove that a
12 child is deprived; the state shall prove that the child is deprived
13 as defined pursuant to this title.

14 Nothing contained in this paragraph shall prevent a court from
15 immediately assuming custody of a child and ordering whatever action
16 may be necessary, including medical treatment, to protect the
17 child's health or welfare;

18 22. "Dispositional hearing" means a hearing by the court as
19 provided by Section 1-4-706 of this title;

20 23. "Drug-endangered child" means a child who is exposed, or is
21 at risk of being exposed, to fentanyl or fentanyl analogs through
22 possession, use, distribution, manufacture, or cultivation by a
23 person responsible for the health, safety, or welfare of the child,
24 or a child who is at risk of suffering physical, psychological or

1 sexual harm as a result of the use, possession, distribution,
2 manufacture or cultivation of controlled substances, or the attempt
3 of any of these acts, by a person responsible for the health, safety
4 or welfare of the child, as defined in this section. This term
5 includes circumstances wherein the substance abuse of the person
6 responsible for the health, safety or welfare of the child
7 interferes with that person's ability to parent and provide a safe
8 and nurturing environment for the child;

9 24. "Emergency custody" means the custody of a child prior to
10 adjudication of the child following issuance of an order of the
11 district court pursuant to Section 1-4-201 of this title or
12 following issuance of an order of the district court pursuant to an
13 emergency custody hearing, as specified by Section 1-4-203 of this
14 title;

15 25. "Facility" means a place, an institution, a building or
16 part thereof, a set of buildings, or an area whether or not
17 enclosing a building or set of buildings used for the lawful custody
18 and treatment of children;

19 26. "Failure to protect" means failure to take reasonable
20 action to remedy or prevent child abuse or neglect, and includes the
21 conduct of a nonabusing parent or guardian who knows the identity of
22 the abuser or the person neglecting the child, but lies, conceals or
23 fails to report the child abuse or neglect or otherwise take
24 reasonable action to end the abuse or neglect;

1 27. "Family-style living program" means a residential program
2 providing sustained care and supervision to residents in a homelike
3 environment not located in a building used for commercial activity;

4 28. "Foster care" or "foster care services" means continuous
5 twenty-four-hour care and supportive services provided for a child
6 in foster placement including, but not limited to, the care,
7 supervision, guidance, and rearing of a foster child by the foster
8 parent;

9 29. "Foster family home" means the private residence of a
10 foster parent who provides foster care services to a child. Such
11 term shall include a nonkinship foster family home, a therapeutic
12 foster family home, or the home of a relative or other kinship care
13 home;

14 30. "Foster parent eligibility assessment" includes a criminal
15 background investigation including, but not limited to, a national
16 criminal history records search based upon the submission of
17 fingerprints, home assessments, and any other assessment required by
18 the Department of Human Services, the Office of Juvenile Affairs, or
19 any child-placing agency pursuant to the provisions of the Oklahoma
20 Child Care Facilities Licensing Act;

21 31. "Guardian ad litem" means a person appointed by the court
22 pursuant to the provisions of Section 1-4-306 of this title having
23 those duties and responsibilities as set forth in that section. The
24 term guardian ad litem shall refer to a court-appointed special

1 advocate as well as to any other person appointed pursuant to the
2 provisions of Section 1-4-306 of this title to serve as a guardian
3 ad litem;

4 32. "Guardian ad litem of the estate of the child" means a
5 person appointed by the court to protect the property interests of a
6 child pursuant to Section 1-8-108 of this title;

7 33. "Group home" means a residential facility licensed by the
8 Department to provide full-time care and community-based services
9 for more than five but fewer than thirteen children;

10 34. "Harm or threatened harm to the health or safety of a
11 child" means any real or threatened physical, mental, or emotional
12 injury or damage to the body or mind that is not accidental
13 including, but not limited to, sexual abuse, sexual exploitation,
14 neglect, or dependency;

15 35. "Heinous and shocking abuse" includes, but is not limited
16 to, aggravated physical abuse that results in serious bodily,
17 mental, or emotional injury. "Serious bodily injury" means injury
18 that involves:

- 19 a. a substantial risk of death,
- 20 b. extreme physical pain,
- 21 c. protracted disfigurement,
- 22 d. a loss or impairment of the function of a body member,
- 23 organ, or mental faculty,
- 24

- e. an injury to an internal or external organ or the body,
- f. a bone fracture,
- g. sexual abuse or sexual exploitation,
- h. chronic abuse including, but not limited to, physical, emotional, or sexual abuse, or sexual exploitation which is repeated or continuing,
- i. torture that includes, but is not limited to, inflicting, participating in or assisting in inflicting intense physical or emotional pain upon a child repeatedly over a period of time for the purpose of coercing or terrorizing a child or for the purpose of satisfying the craven, cruel, or prurient desires of the perpetrator or another person, or
- j. any other similar aggravated circumstance;

36. "Heinous and shocking neglect" includes, but is not limited to:

- a. chronic neglect that includes, but is not limited to, a persistent pattern of family functioning in which the caregiver has not met or sustained the basic needs of a child which results in harm to the child,
- b. neglect that has resulted in a diagnosis of the child as a failure to thrive,

1 c. an act or failure to act by a parent that results in
2 the death or near death of a child or sibling, serious
3 physical or emotional harm, sexual abuse, or sexual
4 exploitation, or presents an imminent risk of serious
5 harm to a child, or

6 d. any other similar aggravating circumstance;

7 37. "Individualized service plan" means a document written
8 pursuant to Section 1-4-704 of this title that has the same meaning
9 as "service plan" or "treatment plan" where those terms are used in
10 the Oklahoma Children's Code;

11 38. "Infant" means a child who is twelve (12) months of age or
12 younger;

13 39. "Institution" means a residential facility offering care
14 and treatment for more than twenty residents;

15 40. a. "Investigation" means a response to an allegation of
16 abuse or neglect that involves a serious and immediate
17 threat to the safety of the child, making it necessary
18 to determine:

19 (1) the current safety of a child and the risk of
20 subsequent abuse or neglect, and

21 (2) whether child abuse or neglect occurred and
22 whether the family needs prevention- and
23 intervention-related services.
24

1 b. Investigation results in a written response stating
2 one of the following findings:

3 (1) "substantiated" means the Department has
4 determined, after an investigation of a report of
5 child abuse or neglect and based upon some
6 credible evidence, that child abuse or neglect
7 has occurred. When child abuse or neglect is
8 substantiated, the Department may recommend:

9 (a) court intervention if the Department finds
10 the health, safety, or welfare of the child
11 is threatened, or

12 (b) child abuse and neglect prevention- and
13 intervention-related services for the child,
14 parents or persons responsible for the care
15 of the child if court intervention is not
16 determined to be necessary,

17 (2) "unsubstantiated" means the Department has
18 determined, after an investigation of a report of
19 child abuse or neglect, that insufficient
20 evidence exists to fully determine whether child
21 abuse or neglect has occurred. If child abuse or
22 neglect is unsubstantiated, the Department may
23 recommend, when determined to be necessary, that
24 the parents or persons responsible for the care

1 of the child obtain child abuse and neglect
2 prevention- and intervention-related services, or
3 (3) "ruled out" means a report in which a child
4 protective services specialist has determined,
5 after an investigation of a report of child abuse
6 or neglect, that no child abuse or neglect has
7 occurred;

8 41. "Kinship care" means full-time care of a child by a kinship
9 relation;

10 42. "Kinship guardianship" means a permanent guardianship as
11 defined in this section;

12 43. "Kinship relation" or "kinship relationship" means
13 relatives, stepparents, or other responsible adults who have a bond
14 or tie with a child or to whom has been ascribed a family
15 relationship role with the child's parents or the child; provided,
16 however, in cases where the Indian Child Welfare Act applies, the
17 definitions contained in 25 U.S.C., Section 1903 shall control;

18 44. "Mental health facility" means a mental health or substance
19 abuse treatment facility as defined by the Inpatient Mental Health
20 and Substance Abuse Treatment of Minors Act;

21 45. "Minor" means the same as the term child as defined in this
22 section;

1 46. "Minor in need of treatment" means a child in need of
2 mental health or substance abuse treatment as defined by the
3 Inpatient Mental Health and Substance Abuse Treatment of Minors Act;

4 47. "Multidisciplinary child abuse team" means any team
5 established pursuant to Section 1-9-102 of this title of three or
6 more persons who are trained in the prevention, identification,
7 investigation, prosecution, and treatment of physical and sexual
8 child abuse and who are qualified to facilitate a broad range of
9 prevention- and intervention-related services and services related
10 to child abuse. For purposes of this definition, "freestanding"
11 means a team not used by a child advocacy center for its
12 accreditation;

13 48. "Near death" means a child is in serious or critical
14 condition, as certified by a physician, as a result of abuse or
15 neglect;

16 49. a. "Neglect" means:

17 (1) the failure or omission to provide any of the
18 following:

- 19 (a) adequate nurturance and affection, food,
20 clothing, shelter, sanitation, hygiene, or
21 appropriate education,
22 (b) medical, dental, or behavioral health care,
23 (c) supervision or appropriate caretakers to
24 protect the child from harm or threatened

1 harm of which any reasonable and prudent
2 person responsible for the child's health,
3 safety or welfare would be aware, or

4 (d) special care made necessary for the child's
5 health and safety by the physical or mental
6 condition of the child,

7 (2) the failure or omission to protect a child from
8 exposure to any of the following:

9 (a) the use, possession, sale, or manufacture of
10 illegal drugs,

11 (b) illegal activities, or

12 (c) sexual acts or materials that are not age-
13 appropriate, or

14 (3) abandonment.

15 b. Neglect shall not mean a child who engages in
16 independent activities, except if the person
17 responsible for the child's health, safety or welfare
18 willfully disregards any harm or threatened harm to
19 the child, given the child's level of maturity,
20 physical condition or mental abilities. Such
21 independent activities include but are not limited to:

22 (1) traveling to and from school including by
23 walking, running or bicycling,
24

- (2) traveling to and from nearby commercial or recreational facilities,
- (3) engaging in outdoor play,
- (4) remaining at home unattended for a reasonable amount of time,
- (5) remaining in a vehicle if the temperature inside the vehicle is not or will not become dangerously hot or cold, except under the conditions described in Section 11-1119 of Title 47 of the Oklahoma Statutes, or
- (6) engaging in similar activities alone or with other children.

Nothing in this paragraph shall be construed to mean a child is abused or neglected for the sole reason the parent, legal guardian or person having custody or control of a child, in good faith, selects and depends upon spiritual means alone through prayer, in accordance with the tenets and practice of a recognized church or religious denomination, for the treatment or cure of disease or remedial care of such child. Nothing contained in this paragraph shall prevent a court from immediately assuming custody of a child, pursuant to the Oklahoma Children's Code, and ordering whatever action may be necessary, including medical treatment, to protect the child's health or welfare;

1 50. "Permanency hearing" means a hearing by the court pursuant
2 to Section 1-4-811 of this title;

3 51. "Permanent custody" means the court-ordered custody of an
4 adjudicated deprived child when a parent-child relationship no
5 longer exists due to termination of parental rights or due to the
6 death of a parent or parents;

7 52. "Permanent guardianship" means a judicially created
8 relationship between a child, a kinship relation of the child, or
9 other adult established pursuant to the provisions of Section 1-4-
10 709 of this title;

11 53. "Person responsible for a child's health, safety, or
12 welfare" includes a parent; a legal guardian; custodian; a foster
13 parent; a person eighteen (18) years of age or older with whom the
14 child's parent cohabitates or any other adult residing in the home
15 of the child; an agent or employee of a public or private
16 residential home, institution, facility or day treatment program as
17 defined in Section 175.20 of Title 10 of the Oklahoma Statutes; or
18 an owner, operator, or employee of a child care facility as defined
19 by Section 402 of Title 10 of the Oklahoma Statutes;

20 54. "Plan of safe care" means a plan developed for an infant
21 with Neonatal Abstinence Syndrome or a Fetal Alcohol Spectrum
22 Disorder upon release from the care of a health care provider that
23 addresses the health and substance use treatment needs of the infant
24 and mother or caregiver;

1 55. "Protective custody" means custody of a child taken by a
2 law enforcement officer or designated employee of the court without
3 a court order;

4 56. "Putative father" means an alleged father as that term is
5 defined in Section 7700-102 of Title 10 of the Oklahoma Statutes;

6 57. "Qualified residential treatment program" means a program
7 that:

- 8 a. has a trauma-informed treatment model that is designed
9 to address the needs including clinical needs as
10 appropriate, of children with serious emotional or
11 behavioral disorders or disturbances and, with respect
12 to a child, is able to implement the treatment
13 identified for the child from a required assessment,
- 14 b. has registered or licensed nursing staff and other
15 licensed clinical staff who:
 - 16 (1) provide care within the scope of their practice
17 as defined by the laws of this state,
 - 18 (2) are on-site according to the treatment model
19 referred to in subparagraph a of this paragraph,
20 and
 - 21 (3) are available twenty-four (24) hours a day and
22 seven (7) days a week,

- c. to the extent appropriate, and in accordance with the child's best interest, facilitates participation of family members in the child's treatment program,
- d. facilitates outreach to the family members of the child including siblings, documents how the outreach is made including contact information, and maintains contact information for any known biological family of the child,
- e. documents how family members are integrated into the treatment process for the child including post-discharge, and how sibling connections are maintained,
- f. provides discharge planning and family-based aftercare support for at least six (6) months post-discharge, and
- g. is licensed and accredited by any of the following independent, not-for-profit organizations:
 - (1) the Commission on Accreditation of Rehabilitation Facilities (CARF),
 - (2) the Joint Commission,
 - (3) the Council on Accreditation (COA), or
 - (4) any other federally approved independent, not-for-profit accrediting organization;

58. "Reasonable and prudent parent standard" means the standard characterized by careful and sensible parental decisions that

1 maintain the health, safety, and best interests of a child while at
2 the same time encouraging the emotional and developmental growth of
3 the child. This standard shall be used by the child's caregiver
4 when determining whether to allow a child to participate in
5 extracurricular, enrichment, cultural, and social activities. For
6 purposes of this definition, the term "caregiver" means a foster
7 parent with whom a child in foster care has been placed, a
8 representative of a group home where a child has been placed or a
9 designated official for a residential child care facility where a
10 child in foster care has been placed;

11 59. "Relative" means a grandparent, great-grandparent, brother
12 or sister of whole or half blood, aunt, uncle or any other person
13 related to the child;

14 60. "Residential child care facility" means a twenty-four-hour
15 residential facility where children live together with or are
16 supervised by adults who are not their parents or relatives;

17 61. "Review hearing" means a hearing by the court pursuant to
18 Section 1-4-807 of this title;

19 62. "Risk" means the likelihood that an incident of child abuse
20 or neglect will occur in the future;

21 63. "Safety threat" means the threat of serious harm due to
22 child abuse or neglect occurring in the present or in the very near
23 future and without the intervention of another person, a child would
24

1 likely or in all probability sustain severe or permanent disability
2 or injury, illness, or death;

3 64. "Safety analysis" means action taken by the Department in
4 response to a report of alleged child abuse or neglect that may
5 include an assessment or investigation based upon an analysis of the
6 information received according to priority guidelines and other
7 criteria adopted by the Department;

8 65. "Safety evaluation" means evaluation of a child's situation
9 by the Department using a structured, evidence-based tool to
10 determine if the child is subject to a safety threat;

11 66. "Secure facility" means a facility which is designed and
12 operated to ensure that all entrances and exits from the facility
13 are subject to the exclusive control of the staff of the facility,
14 whether or not the juvenile being detained has freedom of movement
15 within the perimeter of the facility, or a facility which relies on
16 locked rooms and buildings, fences, or physical restraint in order
17 to control behavior of its residents;

18 67. "Sibling" means a biologically or legally related brother
19 or sister of a child. This includes an individual who satisfies at
20 least one of the following conditions with respect to a child:

- 21 a. the individual is considered by state law to be a
22 sibling of the child, or
- 23 b. the individual would have been considered a sibling
24 under state law but for a termination or other

1 disruption of parental rights, such as the death of a
2 parent;

3 68. "Specialized foster care" means foster care provided to a
4 child in a foster home or agency-contracted home which:

- 5 a. has been certified by the Developmental Disabilities
- 6 Services Division of the Department of Human Services,
- 7 b. is monitored by the Division, and
- 8 c. is funded through the Home and Community-Based Waiver
- 9 Services Program administered by the Division;

10 69. "Successful adulthood program" means a program specifically
11 designed to assist a child to enhance those skills and abilities
12 necessary for successful adult living. A successful adulthood
13 program may include, but shall not be limited to, such features as
14 minimal direct staff supervision, and the provision of supportive
15 services to assist children with activities necessary for finding an
16 appropriate place of residence, completing an education or
17 vocational training, obtaining employment, or obtaining other
18 similar services;

19 70. "Temporary custody" means court-ordered custody of an
20 adjudicated deprived child;

21 71. "Therapeutic foster family home" means a foster family home
22 which provides specific treatment services, pursuant to a
23 therapeutic foster care contract, which are designed to remedy
24

1 social and behavioral problems of a foster child residing in the
2 home;

3 72. "Time-limited reunification services" means reunification
4 services provided only during the period of fifteen (15) months that
5 begins on the date the child is considered to have entered foster
6 care;

7 73. "Trafficking in persons" means sex trafficking or severe
8 forms of trafficking in persons as described in Section 7102 of
9 Title 22 of the United States Code:

10 a. "sex trafficking" means the recruitment, harboring,
11 transportation, provision, obtaining, patronizing or
12 soliciting of a person for the purpose of a commercial
13 sex act, and

14 b. "severe forms of trafficking in persons" means:

15 (1) sex trafficking in which a commercial sex act is
16 induced by force, fraud, or coercion, or in which
17 the person induced to perform such act has not
18 attained eighteen (18) years of age, or

19 (2) the recruitment, harboring, transportation,
20 provision, obtaining, patronizing or soliciting
21 of a person for labor or services, through the
22 use of force, fraud, or coercion for the purpose
23 of subjection to involuntary servitude, peonage,
24 debt bondage, or slavery;

1 74. "Transitional living program" means a residential program
2 that may be attached to an existing facility or operated solely for
3 the purpose of assisting children to develop the skills and
4 abilities necessary for successful adult living. The program may
5 include, but shall not be limited to, reduced staff supervision,
6 vocational training, educational services, employment and employment
7 training, and other appropriate independent living skills training
8 as a part of the transitional living program; and

9 75. "Voluntary foster care placement" means the temporary
10 placement of a child by the parent, legal guardian or custodian of
11 the child in foster care pursuant to a signed placement agreement
12 between the Department or a child-placing agency and the child's
13 parent, legal guardian or custodian.

14 SECTION 3. AMENDATORY 10A O.S. 2021, Section 1-2-102, as
15 amended by Section 2, Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025,
16 Section 1-2-102), is amended to read as follows:

17 Section 1-2-102. A. 1. Upon receipt of a report that a child
18 may be abused, neglected or drug-endangered, the Department of Human
19 Services shall conduct a safety analysis.

20 2. The Department may employ or contract with active or retired
21 social work, medical and law enforcement professionals who shall be
22 strategically placed throughout the state to:
23
24

- a. provide investigation support and to assist caseworkers with assessment decisions and intervention activities,
- b. serve as consultants to caseworkers in all aspects of their duties, and
- c. designate persons who shall act as liaisons within the Department whose primary functions are to develop relationships with local law enforcement agencies and courts.

3. The Department shall forward a report of its assessment or investigation and findings to any district attorney's office which may have jurisdiction to file a petition pursuant to Section 1-4-101 of this title.

4. The Department shall determine the military status of parents whose children are subject to abuse or neglect. If the Department determines that a parent or guardian is currently serving on active duty in the United States military, the Department shall notify a United States Department of Defense family advocacy program that there is an investigation into the parent or guardian. The Department shall forward a report of its assessment or investigation and findings to the appropriate military law enforcement entity.

5. Whenever the Department determines there is a child that meets the definition of a "drug-endangered child", as defined in Section 1-1-105 of this title, or a child has been diagnosed with

1 fetal alcohol syndrome and the referral is accepted for
2 investigation, the Department shall conduct an investigation of the
3 allegations and shall not limit the evaluation of the circumstances
4 to an assessment.

5 6. Whenever the Department determines an infant has been
6 diagnosed with Neonatal Abstinence Syndrome or a Fetal Alcohol
7 Spectrum Disorder, but the referral is not accepted for
8 investigation, the Department shall develop a plan of safe care that
9 addresses both the infant and affected family member or caregiver.
10 The plan of safe care shall address, at a minimum, the health and
11 substance use treatment needs of the infant and affected family
12 member or caregiver.

13 B. 1. If the Department determines that a child meets the
14 definition of a "drug-endangered child", and the referral is
15 accepted for investigation, the Department shall conduct a safety
16 analysis and shall attempt to acquire consent for an immediate drug
17 screening for any parent, guardian, or caregiver, including, but not
18 limited to, methamphetamine production or use, opioid exposure, or
19 any indication of fentanyl presence. If the parent, guardian, or
20 caregiver refuses to consent to a drug screening and substance use
21 is suspected or confirmed following a safety analysis, the
22 Department shall notify a district attorney within seventy-two (72)
23 hours to request a court order compelling the parent, guardian, or
24 caregiver to submit to a drug screening. If the parent, guardian,

1 or caregiver refuses to consent to a drug screening and the court
2 orders the parent, guardian, or caregiver to submit to a drug
3 screening, the court shall also order such parent, guardian, or
4 caregiver to pay the drug screening cost. All drug screenings shall
5 include mandatory fentanyl testing.

6 2. For any case in which a child is determined to be drug-
7 endangered, drug testing shall occur:

8 a. at intake for investigations,

9 b. as part of ongoing monitoring in any open deprived
10 case where drug use or drug endangerment is at issue,
11 and

12 c. prior to any reunification.

13 3. If, upon receipt of a report alleging that a child is drug-
14 endangered, the Department determines that drug activity is
15 indicated or that the child meets the definition of a "drug-
16 endangered child", the Department shall immediately make a referral,
17 either verbally or in writing, to the appropriate local law
18 enforcement agency for the purpose of conducting a possible criminal
19 investigation.

20 C. 1. If, upon receipt of a report alleging abuse or neglect
21 or during the assessment or investigation, the Department determines
22 that:

1 a. the alleged perpetrator is someone other than a person
2 responsible for the child's health, safety, or
3 welfare, and

4 b. the alleged abuse or neglect of the child does not
5 appear to be attributable to failure on the part of a
6 person responsible for the child's health, safety, or
7 welfare to provide protection for the child,

8 the Department shall immediately make a referral, in writing, to the
9 appropriate local law enforcement agency for the purpose of
10 conducting a possible criminal investigation. The Department shall
11 maintain a record of its transmission of each report to law
12 enforcement.

13 2. After making the referral to the law enforcement agency, the
14 Department shall not be responsible for further investigation
15 unless:

16 a. the Department has reason to believe the alleged
17 perpetrator is a parent of another child, not the
18 subject of the criminal investigation, or is otherwise
19 a person responsible for the health, safety, or
20 welfare of another child,

21 b. notice is received from a law enforcement agency that
22 it has determined the alleged perpetrator is a parent
23 of or a person responsible for the health, safety, or
24

1 welfare of another child not the subject of the
2 criminal investigation, or

- 3 c. the appropriate law enforcement agency requests the
4 Department to assist in the investigation. If funds
5 and personnel are available, as determined by the
6 Director of the Department or a designee, the
7 Department may assist law enforcement in interviewing
8 children alleged to be victims of physical or sexual
9 abuse.

10 3. If, upon receipt of a report alleging abuse or neglect or
11 during the assessment or investigation, the Department determines
12 that the alleged abuse or neglect of the child involves:

- 13 a. a child in the custody of the Office of Juvenile
14 Affairs, and

- 15 b. at the time of the alleged abuse or neglect, such
16 child was placed in a secure facility operated by the
17 Office of Juvenile Affairs, as defined by Section 2-1-
18 103 of this title,

19 the Department shall immediately make a referral, either verbally or
20 in writing, to the appropriate law enforcement agency for the
21 purpose of conducting a possible criminal investigation. After
22 making the referral to the law enforcement agency, the Department
23 shall not be responsible for further investigation.

1 ~~C.~~ D. 1. Any law enforcement agency receiving a referral as
2 provided in this section shall provide the Department with a copy of
3 the report of any investigation resulting from a referral from the
4 Department.

5 2. Whenever, in the course of any criminal investigation, a law
6 enforcement agency determines that there is cause to believe that a
7 child, other than a child in the custody of the Office of Juvenile
8 Affairs and placed in an Office of Juvenile Affairs secure juvenile
9 facility, may be abused or neglected by reason of the acts,
10 omissions, or failures on the part of a person responsible for the
11 health, safety, or welfare of the child, the law enforcement agency
12 shall immediately contact the Department for the purpose of an
13 investigation.

14 ~~D.~~ E. If, upon receipt of a report alleging abuse or neglect,
15 the Department determines that the family has been the subject of a
16 deprived petition, the Department shall conduct a thorough
17 investigation of the allegations and shall not limit the evaluation
18 of the circumstances to an assessment. In addition, if the family
19 has been the subject of three or more referrals, the Department
20 shall conduct a thorough investigation of the allegations and shall
21 not limit the evaluation of the circumstances to an assessment.

22 ~~E.~~ F. For the purposes of this section, "law enforcement" shall
23 include military law enforcement if the subject of an investigation
24

1 of abuse or neglect is currently serving in any branch of the United
2 States military.

3 ~~F.~~ G. The Department shall promulgate rules by January 1, 2027,
4 to implement the provisions of this section.

5 SECTION 4. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 10A of Title 1-4-717, unless
7 there is created a duplication in numbering, reads as follows:

8 A. The court may order the family, or a member of the family, a
9 guardian, or a caregiver who is subject to fentanyl testing under
10 this act to pay drug testing costs.

11 B. The Department of Human Services shall cover the cost when
12 the individual:

- 13 1. Is enrolled in a state or federal voucher program;
14 2. Receives qualifying public assistance; or
15 3. Demonstrates financial hardship via affidavit.

16 SECTION 5. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 10A of Title 1-4-718, unless
18 there is created a duplication in numbering, reads as follows:

19 A. There is hereby created in the State Treasury a revolving
20 fund for the Department of Human Services to be designated the
21 "Child Welfare Fentanyl Testing Revolving Fund". The fund shall be
22 a continuing fund, not subject to fiscal year limitations, and shall
23 consist of all proceeds from the fifty-dollar fee imposed pursuant
24 to paragraph 2 of subsection D of Section 852.1 of Title 21 of the

Oklahoma Statutes. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department for the purpose of offsetting drug testing costs of the Department. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

B. The Department of Human Services shall electronically submit an annual report by December 31 to the Speaker of the House of Representatives and the President Pro Tempore of the Senate that includes, but is not limited to, testing volumes, costs, positive rates, and fund balance, including impacts on child safety outcomes.

SECTION 6. AMENDATORY 21 O.S. 2021, Section 852.1, as amended by Section 23 of Enrolled Senate Bill No. 1627 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

Section 852.1. A. A person who is the parent, guardian, or person having custody or control over a child as defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, commits child endangerment when the person:

1. Knowingly permits physical or sexual abuse of a child;
2. Knowingly permits a child to be present at a location where a controlled dangerous substance is being manufactured or attempted

1 to be manufactured as defined in Section 2-101 of Title 63 of the
2 Oklahoma Statutes;

3 3. Knowingly and willfully permits or causes a child under
4 eighteen (18) years of age to be placed in a situation where the
5 life, health, or safety of the child is endangered as described in
6 subsection B of this section;

7 4. Knowingly permits a child to be present in a vehicle when
8 the person knows or should have known that the operator of the
9 vehicle is impaired by or is under the influence of alcohol or
10 another intoxicating substance; or

11 ~~4.~~ 5. Is the driver, operator, or person in physical control of
12 a vehicle in violation of Section 11-902 of Title 47 of the Oklahoma
13 Statutes or impaired while transporting or having in the vehicle
14 such child or children.

15 However, it is an affirmative defense to this paragraph if the
16 person had a reasonable apprehension that any action to stop the
17 physical or sexual abuse or deny permission for the child to be in
18 the vehicle with an intoxicated person would result in substantial
19 bodily harm to the person or the child.

20 Nothing in this subsection shall prohibit the prosecution of a
21 person pursuant to the provisions of Section 11-902 or 11-904 of
22 Title 47 of the Oklahoma Statutes.

1 B. "Endangerment" includes, but is not limited to, exposing a
2 child to fentanyl or fentanyl analogs through possession, use,
3 distribution, manufacture, or cultivation.

4 C. The provisions of this section shall not apply to any
5 parent, guardian or other person having custody or control of a
6 child for the sole reason that the parent, guardian or other person
7 in good faith selects and depends upon spiritual means or prayer for
8 the treatment or cure of disease or remedial care for such child.
9 This subsection shall in no way limit or modify the protections
10 afforded said child in Section 852 of this title or Section 1-4-904
11 of Title 10A of the Oklahoma Statutes.

12 ~~C.~~ D. 1. Any person convicted of violating any provision of
13 this section shall be guilty of a Class B6 felony offense punishable
14 by imprisonment in the custody of the Department of Corrections for
15 a term of not more than four (4) years, or by a fine not exceeding
16 Five Thousand Dollars (\$5,000.00), or by both such fine and
17 imprisonment.

18 2. If fentanyl was present or detected in the endangerment that
19 led to the conviction, the person convicted shall be guilty of a
20 felony punishable by imprisonment in the custody of the Department
21 of Corrections for a term not to exceed five (5) years, or by a fine
22 not to exceed Five Thousand Dollars (\$5,000.00), or by both such
23 imprisonment and fine. Such person shall also pay a mandatory fee
24 of Fifty Dollars (\$50.00) to the State Treasury to be deposited in

1 the Child Welfare Fentanyl Testing Revolving Fund created in Section
2 5 of this act.

3 SECTION 7. There is hereby appropriated to the Child Welfare
4 Fentanyl Testing Revolving Fund created in Section 5 of this act
5 from any monies not otherwise appropriated from the General Revenue
6 Fund of the State Treasury for the fiscal year ending June 30, 2027,
7 the sum of One Million Two Hundred Twenty Thousand Dollars
8 (\$1,220,000.00) or so much thereof as may be necessary to carry out
9 the provisions of this act.

10 SECTION 8. NEW LAW A new section of law not to be
11 codified in the Oklahoma Statutes reads as follows:

12 The requirements of this act shall be carried out within
13 existing appropriations and designated funds, including the Child
14 Welfare Fentanyl Testing Revolving Fund created in Section 5 of this
15 act, and shall not require the Department of Human Services to
16 create new data systems or hire additional full-time employees.

17 SECTION 9. This act shall become effective January 1, 2027."
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1 Passed the House of Representatives the 7th day of May, 2026.

2
3
4 Presiding Officer of the House of
Representatives
5

6 Passed the Senate the ____ day of _____, 2026.
7

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9 Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 633

By: Weaver of the Senate

3 and

4 Blair of the House

5
6
7 An Act relating to the Oklahoma Juvenile Code;
8 amending 10A O.S. 2021, Section 2-7-308, which
9 relates to management information system and access
10 to confidential records and reports; authorizing
11 certain persons access to certain confidential
12 records and reports; and providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 10. AMENDATORY 10A O.S. 2021, Section 2-7-308,
15 is amended to read as follows:

16 Section 2-7-308. A. The Office of Juvenile Affairs shall
17 implement an agency-wide management information system for all
18 programs and services of the Office of Juvenile Affairs related to
19 children, youth and families.

20 B. The management information system shall:

21 1. To the maximum extent possible, be based upon the
22 integration, utilization and modification, as necessary, of existing
23 information systems within the Office of Juvenile Affairs;

24 2. Provide for the security of and limited access to the
information;

1 3. Include case-specific information, including outcomes, and
2 have the ability to monitor the status of children and youth
3 receiving services through the Office of Juvenile Affairs;

4 4. Be capable of providing management reports and information
5 regarding the various children and youth programs of the Office of
6 Juvenile Affairs, and of providing aggregate information necessary
7 for planning, monitoring and evaluation of said programs and
8 services; and

9 5. Be designed so that management and analytical reports can be
10 readily generated for those who require them.

11 C. 1. The management information system implemented by the
12 Office of Juvenile Affairs shall be integrated with the child
13 welfare management information system implemented by the Department
14 of Human Services and to the extent possible with the Juvenile
15 Justice Information System.

16 2. The management information system shall be available to the
17 superintendent or designee for the Oklahoma School for the Blind,
18 for the Oklahoma School for the Deaf, and for public school
19 districts, and to any other persons authorized to obtain
20 confidential records and reports of the Office of Juvenile Affairs
21 pursuant to Chapter 6 of the Oklahoma Juvenile Code.

22 SECTION 11. This act shall become effective November 1, 2025.
23
24

1 Passed the Senate the 13th day of March, 2025.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2025.

7
8 _____
9 Presiding Officer of the House
10 of Representatives